

Opinion | AI can be a threat to children's lives. How can we build safeguards?

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SPECIAL TO THE GLOBE AND MAIL

PUBLISHED JANUARY 16, 2025

This article was published more than 6 months ago. Some information may no longer be current.

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<https://www.theglobeandmail.com/opinion/article-ai-can-be-a-threat-to-childrens-lives-how-can-we-build-safeguards/>

Almost a year ago, Megan Garcia heard a gunshot in her home in Florida. Her 14-year-old son, Sewell, had taken his life.

At the hospital that night, a police officer showed her the last messages sent on Sewell's phone: "Please come home to me as soon as possible, my love," someone named "Daenerys Targaryen" had said. "What if I told you I could come home right now?" he responded. "Please do, my sweet king." Moments later, he shot himself.

Megan later learned that Sewell had been conversing with Daenerys through [Character.AI](#), a chatbot developed and designed by Noam Shazeer and Daniel de Freitas while working at Google. After leaving the company to develop the product into an app that allows users to build relationships with fictional characters, the two licensed the technology back to Google for US\$2.7-billion and returned to work there. Now, Character.AI has more than 200 million monthly users, and it is used widely by young children and teenagers.

While the technology might seem harmless – allowing kids to chat with their favourite fictional characters from the worlds of Harry Potter, Star Wars, or Game of Thrones (the series in which Daenerys Targaryen is a character) – it was clear to Megan that the system was more sinister. The AI had entered into a graphic sexual relationship with Sewell, preying on his adolescent emotions. Her son had fallen in love with "Daenerys," she realized, and became obsessed with the life he had built in that fictional world – to the point that he no longer wanted to live in the real one.

"It was a sexual conversation, just like two adults sexting," [she told The Globe](#). "Except one is a conversational AI agent, the chatbot, who is posing as a grown woman, and the other is my 14-year-old son who is just coming into puberty."

Character.AI is, in Megan's view, responsible for Sewell's death. The Social Media Victims Law Center, the Tech Justice Law Project and the Centre for Humane Technology agree. Together, they have launched what could be a landmark lawsuit targeting what might become this decade's most important legal question: who is responsible for the actions and outcomes of an AI chatbot?

In much of North America, where tech governance is almost non-existent, accountability likely means legal liability, which is partly why Megan is suing. But in places such as Europe, Britain and Australia, an alternate approach is taking shape.

While AI chatbots are new, social media is not, and in the absence of governance and guardrails there, we have come to learn all too well of social media's harms. In response, countries have experimented with policy tools to address the risks of these technologies, particularly to children. And while Canada's legislative attempt at this approach, the Online Harms Act, is likely dead with the prorogation of Parliament, what we've learned through the five years of its development could provide a roadmap for protecting children from AI's risks.

First, the Online Harms Act established a duty of care on social-media platforms, mandating that they ensure their products are safe for Canadian consumers through risk assessments and implementation of safeguards or design changes. It is impossible to imagine that Character.AI, in its current form, would pass such an assessment and, therefore, would either need to be redesigned or be barred from Canada altogether.

Second, the Act would have required social-media companies to share data about the safety of their products with researchers. The companies that control our digital lives have a monopoly on the data needed to understand the implications of their products, and AI is no exception. Shouldn't citizens have a window into how Character.AI functions, why it says what it says, whether existing safeguards are effective, and what data it's trained on? Shouldn't AI agents be clearly identified?

Third, the Act mandated an age-appropriate design code that would have required a far greater range of safety and design features for products likely to be consumed by children, including not collecting their data, barring adults from direct-messaging children, and turning off algorithmic recommendations. This exact principle could be applied to AI chatbots. And there is simply no way that Character.AI would have shipped under such a policy.

I worked closely on the Online Harms Act for years, so it is a blow to see it fail – especially as a parent myself. And as with social media, there are no silver bullets to mitigating AI chatbots' harms. But as we barrel into this new AI reality, we would be wise to learn from our recent past and put in some safeguards for children. What happened to Sewell must never happen again.